

MASTER SOFTWARE DEVELOPMENT AND SERVICES AGREEMENT

THIS MASTER SOFTWARE DEVELOPMENT AND SERVICES AGREEMENT (the "Agreement") is made and entered into as of this 26th day of January, 2026 (the "Effective Date"), by and between:

OMEGA SOLUTIONS INTERNATIONAL, LTD., a corporation organized and existing under the laws of the State of Delaware, with its principal place of business located at 1234 Enterprise Way, Silicon Valley, CA 94000 ("Provider"),

AND

APEX GLOBAL LOGISTICS, INC., a corporation organized and existing under the laws of the State of New York, with its principal place of business located at 5678 Commerce Blvd, New York, NY 10001 ("Client").

(Provider and Client are collectively referred to herein as the "Parties" and individually as a "Party".)

RECITALS

WHEREAS, Provider is in the business of offering custom software development, cloud infrastructure management, and data analytics services; and **WHEREAS**, Client desires to engage Provider to develop, deploy, and maintain a proprietary logistics management platform (the "System"); and **WHEREAS**, the Parties wish to set forth the terms and conditions under which such services shall be performed;

NOW, THEREFORE, in consideration of the mutual covenants and promises herein contained, the Parties agree as follows:

ARTICLE 1: DEFINITIONS

For purposes of this Agreement, the following capitalized terms shall have the meanings set forth below:

1.1 **"Affiliate"** means, with respect to any Party, any other entity that directly or indirectly Controls, is Controlled by, or is under common Control with such Party. 1.2 **"Confidential Information"** means all non-public, proprietary, or confidential information of a Party, whether in oral, written, electronic, or other form, that is designated as confidential or that strictly by its nature should be reasonably understood to be confidential. 1.3 **"Deliverables"** means all documents, work product, software, code, designs, specifications, and other materials developed by Provider for Client under this Agreement. 1.4 **"Intellectual Property Rights"** means all patent rights, copyright rights, mask work rights, moral rights, rights of publicity, trademark, trade dress and service mark rights, goodwill, trade secret rights, and other intellectual property rights as may now exist or hereafter come into existence. 1.5 **"Services"** means the software development, consulting, support, and maintenance services to be provided by Provider as described in the Statement of Work (SOW). 1.6 **"Specifications"** means the functional and technical requirements for the System as detailed in Exhibit A. 1.7 **"System"** means the custom logistics management software to be developed by Provider. 1.8 **"Force Majeure Event"** means any event beyond the reasonable control of the performing party, including but not limited to acts of God, war, riot, embargoes, acts of civil or military authorities, fire, floods, accidents, strikes, or shortages of transportation facilities, fuel, energy, labor or materials.

(Note: In a real test, you might duplicate these definitions 50 times to test length, but for this sample, I will proceed to substantive clauses.)

ARTICLE 2: SCOPE OF SERVICES

2.1 **Engagement.** Client hereby engages Provider, and Provider hereby accepts such engagement, to perform the Services described in any Statement of Work ("SOW") executed by the Parties. Each SOW shall be deemed incorporated into this Agreement. 2.2 **Change Orders.** Client may request changes to the Scope of Services by submitting a written Change Request. Provider shall evaluate the impact of such changes on the schedule and fees and submit a Change Order for Client's approval. No changes shall be effective until a Change Order is signed by both Parties. 2.3 **Standard of Performance.** Provider warrants that the Services will be performed in a workmanlike manner consistent with industry standards. Provider shall assign qualified personnel to perform the Services. 2.4 **Subcontractors.** Provider may not utilize subcontractors without the prior written consent of Client, which consent shall not be unreasonably withheld. Provider remains fully liable for the performance of any subcontractors.

ARTICLE 3: COMPENSATION AND PAYMENT

3.1 **Fees.** Client shall pay Provider the fees set forth in the applicable SOW. Fees may be structured as fixed-price, time-and-materials, or retainer-based, as specified. 3.2 **Invoicing.** Provider shall invoice Client on a monthly basis. All invoices are due and payable within thirty (30) days of receipt ("Net 30"). 3.3 **Late Payments.** Any amount not paid when due shall bear interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is less. 3.4 **Taxes.** Client shall be responsible for all applicable sales, use, value-added, or other taxes associated with the Services, excluding taxes based on Provider's net income. 3.5 **Expense Reimbursement.** Client shall reimburse Provider for all reasonable and necessary out-of-pocket expenses incurred in the performance of the Services, provided such expenses are pre-approved in writing by Client.

ARTICLE 4: TERM AND TERMINATION

4.1 **Term.** This Agreement shall commence on the Effective Date and continue for a period of thirty-six (36) months (the "Initial Term"), unless earlier terminated as provided herein. 4.2 **Renewal.** This Agreement shall automatically renew for successive one (1) year periods ("Renewal Terms") unless either Party provides written notice of non-renewal at least sixty (60) days prior to the expiration of the current term. 4.3 **Termination for Cause.** Either Party may terminate this Agreement immediately upon written notice if the other Party: (a) materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days of receiving notice; or (b) becomes insolvent, files for bankruptcy, or makes an assignment for the benefit of creditors. 4.4 **Termination for Convenience.** Client may terminate this Agreement for convenience upon ninety (90) days' prior written notice to Provider, provided that Client pays all fees due for Services performed up to the date of termination and any unavoidable costs incurred by Provider. 4.5 **Effect of Termination.** Upon termination, Client shall pay Provider for all Services rendered. Provider shall return all Client Data and Confidential Information in its possession.

ARTICLE 5: INTELLECTUAL PROPERTY RIGHTS

5.1 Ownership of Deliverables. Upon full payment of all fees, Client shall own all right, title, and interest in and to the Deliverables, including all source code and documentation. **5.2 Provider Background IP.** Notwithstanding the foregoing, Provider retains all right, title, and interest in its pre-existing intellectual property, tools, libraries, and frameworks ("Provider IP"). Provider grants Client a perpetual, non-exclusive, royalty-free license to use Provider IP solely as integrated into the Deliverables. **5.3 Third-Party Software.** The Deliverables may contain third-party open-source software. Provider shall disclose all such third-party software and ensure that the use thereof complies with the applicable licenses.

ARTICLE 6: CONFIDENTIALITY AND DATA PROTECTION

6.1 Non-Disclosure. Each Party agrees to hold the other Party's Confidential Information in strict confidence and not to disclose such information to any third party without the prior written consent of the disclosing Party. **6.2 Exceptions.** Confidential Information shall not include information that: (a) is or becomes publicly known through no breach of this Agreement; (b) is received from a third party without restriction; or (c) is independently developed by the receiving Party. **6.3 Data Security.** Provider agrees to implement and maintain reasonable administrative, physical, and technical safeguards to protect Client Data from unauthorized access, use, modification, or disclosure. **6.4 GDPR and CCPA Compliance.** To the extent Provider processes personal data of EU or California residents, the Parties agree to execute a separate Data Processing Addendum (DPA).

ARTICLE 7: INDEMNIFICATION AND LIMITATION OF LIABILITY

7.1 Indemnification by Provider. Provider shall indemnify, defend, and hold harmless Client from and against any claims, damages, liabilities, costs, and expenses arising out of any claim that the Deliverables infringe any third-party Intellectual Property Rights. **7.2 Indemnification by Client.** Client shall indemnify, defend, and hold harmless Provider from and against any claims arising out of Client's use of the System in violation of applicable law. **7.3 Limitation of Liability.** EXCEPT FOR INDEMNIFICATION OBLIGATIONS AND BREACHES OF CONFIDENTIALITY, IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES. THE TOTAL LIABILITY OF EITHER PARTY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT DURING THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

ARTICLE 8: MISCELLANEOUS

8.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. **8.2 Dispute Resolution.** Any dispute arising out of this Agreement shall be resolved through binding arbitration administered by the American Arbitration Association (AAA) in New York, NY. **8.3 Entire Agreement.** This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements, understandings, and representations. **8.4 Severability.** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect. **8.5 Assignment.** Neither Party may assign this Agreement without the other Party's prior written consent, except in

connection with a merger, acquisition, or sale of substantially all assets. 8.6 **Notices.** All notices required under this Agreement shall be in writing and sent via certified mail or recognized overnight courier to the addresses set forth above.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

OMEGA SOLUTIONS INTERNATIONAL, LTD. By: _____
Name: John D. Smith Title: Chief Executive Officer

APEX GLOBAL LOGISTICS, INC. By: _____ Name: Jane A.
Doe Title: Chief Operating Officer